

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

**Department 13
Honorable Daniel T. Nishigaya**

J. Long, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2240

DATE: October 22, 2025

TIME: 9:00 & 9:01 A.M.

**TO CONTEST A TENTATIVE RULING, YOU MUST CALL (408) 808-6856
BEFORE 4:00 P.M. ON THE DAY PRIOR TO THE HEARING.**

**You must also inform all other sides to the issue before 4:00 P.M. the day prior to the hearing
that you plan to contest the ruling. The Court will not hear argument, and the tentative ruling will be
adopted if these notifications are not made. (Cal. Rule of Court 3.1308(a)(1); Civil Local Rule 8.E.)**

LINE #	CASE #	CASE TITLE	RULING
LINE 3	23CV415947	James Fok et al vs Peter Wong et al	Motion: Compel Defendants move for an order compelling Plaintiff, MABEL FOK, to respond to Defendants' Supplemental Interrogatory Requests (set one) and for sanctions for Plaintiff's failure to respond in any fashion to Defendants' discovery. Defendants' unopposed motion is GRANTED. (See <i>Laguna Auto Body v. Farmers Is. Exchange</i> (1991) 231 Cal.App.3d 481, 489 ["appellants had ample opportunity to present their arguments and excuses to the trial court. Instead, they failed to file opposition to the motion to compel or the dismissal motion, leading the trial court and us to presume they had no meritorious arguments"].) Plaintiff shall provide code-compliant responses without objections within 15 days of service of the final order. The Court will award sanctions in the amount of \$306.00 which represents 2 hours preparation time and a \$40.00 filing fee. The Court will not award sanctions for anticipated travel and appearance at a hearing on the motion, which is unlikely to be contested. Plaintiff shall pay to Defendants these sanctions within 15 days of service of the final order. Defendants to prepare the final order within 10 days of the date of the hearing.

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LINE #	CASE #	CASE TITLE	RULING
LINE 4	25CV455540	Citibank N.A. vs Lucitinna Jimenez	Motion: Admissions Deemed Admitted Plaintiff's unopposed motion is GRANTED. "[T]he failure to file an opposition creates an inference that the motion ... is meritorious." (<i>Sexton v. Super Ct.</i> (1997) 58 Cal.App.4th 1403, 1410.). Those matters specified in Plaintiff's Request for Admissions are deemed admitted and/or documents deemed genuine. Plaintiff to prepare the final order within 10 days of the date of the hearing.
LINE 5	25CV460138	Christopher Cheung vs Rivian, LLC	Hearing: Petition Compel Arbitration Ctrl Click (or scroll down) on Line 5 for tentative ruling.
LINE 6	25CV460423	CITY OF SAN JOSE, a government entity et al vs James Eu et al	Hearing: Status re: Ex Parte Application Parties are to appear at 11:00 a.m. to discuss status and setting. Remote appearance by video is acceptable.
LINE 7	25CV466337	David Green vs Yelena Green et al	Motion to Dismiss Ctrl Click (or scroll down) on Line 7 for tentative ruling.
9:01 LINE 1	25CV472917	LAKIBA SARAN TAYLOR et al vs GREGORY FUNDING et al	Motion: Withdraw as attorney The motion is MOOT. A Request for Dismissal of the entire action was filed on 10/15/2025, and the case was dismissed without prejudice the same day.